

Court No. - 32

Case :- WRIT - C No. - 41338 of 2008

Petitioner :- Barnala Steel Industries Ltd. And Another

Respondent :- Pvvnl And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- H.P. Dube,S.C.

Hon'ble R.K. Agrawal,J.

Hon'ble Abhinava Upadhya,J.

Civil Misc. Listing Application No. 101163 of 2010

List with the record in the next cause list.

Order Date :- 8.4.2010

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Court No. - 32

Case :- WRIT - C No. - 41338 of 2008

Petitioner :- Barnala Steel Industries Ltd. And Another

Respondent :- Pvvnl And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- H.P. Dube,S.C.

Hon'ble Salil Kumar Rai,J.

Hon'ble Surendra Singh-I,J.

The case has been listed today and the cause list indicates that the petition was disposed of on 30.9.2008.

The Division Bench of this Court in the last paragraph of the order dated 30.9.2008 had recorded that the writ petition was being disposed of which recital was deleted by order dated 23.10.2008 passed by the same Division Bench on a correction application filed by the petitioners.

The order dated 23.10.2008 observes that necessary corrections were being made in the order dated 30.9.2008 by deleting the last paragraph of the order dated 30.9.2008. As a consequence of the order dated 23.10.2008, the petition does not stand disposed of and is still pending.

The cause list wrongly reflects the petition to have been decided vide order dated 30.9.2008.

List again in the next cause list along with the connected petitions and the cause list shall not reflect the case to have been decided.

Order Date :- 19.9.2023

IB

Court No. - 3

Case :- WRIT - C No. - 41338 of 2008

Petitioner :- Barnala Steel Industries Ltd. And Another

Respondent :- Pvvnl And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- H.P. Dube,S.C.

Connected with

Case :- WRIT - C No. - 462 of 2009

Petitioner :- Barnala Steel Industries Ltd. And Another

Respondent :- M.D. Pvvnl And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- H.P. Dube,A.K.Saxena,A.N. Singh,Ajay Singh,Awadhesh Kumar Saxena,Kapil Dev Singh Rathore,Narendra Kumar Tiwari,S.C.

Hon'ble Anjani Kumar Mishra,J.

Hon'ble Jayant Banerji,J.

Heard learned counsel for the petitioners and counsel representing the contesting respondents in these two writ petitions.

Writ Petition No.41338 of 2008 seeks a writ of certiorari for declaring the Conditions No.1 and 2 in the Office Memorandum dated 23.06.2008 illegal. A further direction is sought directing the respondent no.3 to release additional load in the light of the facts stated in the petition.

It is also prayed that this additional load be released through 33 KV feeder by connecting the same with inter connector No.1 at Rana Chowk, Meerut Road, Muzaffarnagar.

Although, it is not in dispute between the parties that under the various interim orders passed in this writ petition, the additional load has already been released and the electricity supply is being utilized by the petitioner.

Insofar as Writ Petition No.462 of 2009 is concerned, the same seeks a writ of certiorari for quashing the terms and conditions in the Letter dated 02.12.2008, only to the extent it demands system loading charges for the release of additional load.

The contention of learned counsel for the petitioners is that the issue of levy of system loading charges can be adequately dealt

with by the Ombudsmen, who is being authorized for redressal of grievances of consumers. The petitioner may be therefore relegated to approach the Ombudsmen in this regard.

Counsel appearing for the respondents has no objection.

Accordingly, we dispose of both the petitions directing petitioner to approach the Ombudsmen for redressal of his grievance especially with regard to the justification or otherwise regarding levy system loading charges upon the petitioner at the time of enhancement of his load.

Order Date :- 28.8.2024

Mayank